

1 ENGROSSED HOUSE
2 BILL NO. 3264

By: George and McCane of the
House

3 and

4 Thompson of the Senate

5
6 An Act relating to crimes and punishments; amending
7 21 O.S. 2021, Section 13.1, as last amended by
8 Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp.
9 2025, Section 13.1), which relates to minimum prison
sentences; adding criminal offense to list of crimes;
and providing an effective date.

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12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. AMENDATORY 21 O.S. 2021, Section 13.1, as
14 last amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp.
15 2025, Section 13.1), is amended to read as follows:

16 Section 13.1. Persons convicted of:

17 1. First degree murder as provided for in Section 701.7 of this
18 title;

19 2. Second degree murder as provided for in Section 701.8 of
20 this title;

21 3. Manslaughter in the first degree as provided for in Section
22 711 of this title;

23 4. Poisoning with intent to kill as provided for in Section 651
24 of this title;

1 5. Shooting with intent to kill, use of a vehicle to facilitate
2 use of a firearm, crossbow or other weapon, assault, battery, or
3 assault and battery with a deadly weapon or by other means likely to
4 produce death or great bodily harm, as provided for in Section 652
5 of this title;

6 6. Assault with intent to kill as provided for in Section 653
7 of this title;

8 7. Conjoint robbery as provided for in Section 800 of this
9 title;

10 8. Robbery with a dangerous weapon as provided for in Section
11 801 of this title;

12 9. First degree robbery as provided for in Section 797 of this
13 title;

14 10. First degree rape as provided for in Section 1111 or 1114
15 of this title;

16 11. First degree arson as provided for in Section 1401 of this
17 title;

18 12. First degree burglary as provided for in Section 1431 of
19 this title;

20 13. Bombing as provided for in Section 1767.1 of this title;

21 14. Any crime against a child as provided for in Section 843.5
22 of this title;

23 15. Forcible sodomy as provided for in Section 888 of this
24 title;

1 16. Child sexual abuse material or aggravated child sexual
2 abuse material as provided for in Section 1021.2, 1021.3, 1024.1,
3 1024.2, or 1040.12a of this title;

4 17. Child sex trafficking as defined in Section 1030 of this
5 title;

6 18. Lewd molestation of a child as provided for in Section 1123
7 of this title;

8 19. Abuse of a vulnerable adult as defined in Section 10-103 of
9 Title 43A of the Oklahoma Statutes;

10 20. Aggravated trafficking as provided for in subsection C of
11 Section 2-415 of Title 63 of the Oklahoma Statutes;

12 21. Aggravated assault and battery as provided for in Section
13 646 of this title upon any person defending another person from
14 assault and battery;

15 22. Human trafficking as defined in Section 748 of this title
16 ~~or~~;

17 23. Domestic abuse by strangulation as provided for in Section
18 644 of this title; or

19 24. Discharging a firearm at or into a dwelling or building
20 used for public or business purposes, as provided for in Section
21 1289.17A of this title,
22 or any attempt, conspiracy, or solicitation thereof, shall be
23 required to serve not less than eighty-five percent (85%) of any
24 sentence of imprisonment imposed by the judicial system prior to

becoming eligible for consideration for parole. Persons convicted of these offenses shall not be eligible for earned credits or any other type of credits which have the effect of reducing the length of the sentence to less than eighty-five percent (85%) of the sentence imposed.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 9th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the ____ day of _____, 2026.

Presiding Officer of the Senate